

ELIZABETH II



Ministers of the Crown Act 1974

1974 CHAPTER 21

An Act to amend the Ministerial and Other Salaries Act 1972 and other provisions about Ministers of the Crown. [27th June 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For Parts I, II and V of Schedule 1 to the Ministerial and Other Salaries Act 1972 there shall be substituted—

“ PART I

Prime Minister and First Lord of the Treasury

Chancellor of the Exchequer

Secretary of State

Minister of Agriculture, Fisheries and Food ...

Any of the following offices for so long as the holder is a member of the Cabinet:—

(a) Lord President of the Council;

(b) Lord Privy Seal;

(c) Chancellor of the Duchy of Lancaster;

(d) Paymaster General;

(e) Chief Secretary to the Treasury;

(f) Parliamentary Secretary to the Treasury;

(g) Minister of State.

£
20,000

New provisions about Ministerial salaries.

1972 c. 3.

13,000

PART II

1. Any of the offices listed at (a) to (g) in Part I above for so long as the holder is not a member of the Cabinet	£
2. Minister in charge of a public department of Her Majesty's Government in the United Kingdom who is not a member of the Cabinet, and who is not eligible for a salary under any other provision of this Act	7,500-9,500
3. Financial Secretary to the Treasury ...	
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PART V

1.—(1) The salary to be paid to the holder of any office mentioned above in this Schedule shall be of the annual amount stated in relation to that office in column 2 or, as the case may be, of such annual amount not more than the upper figure or less than the lower figure so stated as the First Lord of the Treasury may determine.

(2) The date on which the holder of any office listed at (a) to (g) in Part I above becomes or ceases to be a member of the Cabinet shall be notified in the London Gazette, and any such notification (whether before or after the passing of this Act) shall be conclusive evidence for the purposes of this Schedule.

2. In the case of the following offices a salary may be paid to more than one holder of the office at the same time, subject to the limitations expressed below, that is to say—

(a) Secretary of State, so long as not more than 21 salaries are paid at the same time in accordance with Part I above;

(b) Minister of State, so long as not more than 50 salaries are paid at the same time in accordance with Parts I and II above;

(c) Parliamentary Secretary other than Parliamentary Secretary to the Treasury, so long as not more than 83 salaries are paid at the same time in accordance with Parts I and II above taken together with salaries to any Parliamentary Secretary in accordance with Part IV above;

(d) Junior Lord of the Treasury, so long as not more than 5 salaries are paid at the same time;

- (e) Assistant Whip, House of Commons, so long as not more than 7 salaries are paid at the same time;
- (f) Lord in Waiting, so long as not more than 5 salaries are paid at the same time."

2. In section 2(1) of the House of Commons Disqualification Act 1957 (limit on number of Ministers entitled to sit and vote in the House of Commons at any one time) for the words "ninety-one" there shall be substituted the words "ninety-five".

Increase in limit on number of Ministers in Commons.
1957 c. 20.

3.—(1) In Schedule 2 to the House of Commons Disqualification Act 1957 (list of offices subject to the limit in section 2(1) of that Act) after "Chief Secretary to the Treasury" there shall be inserted—

Department in charge of Minister not in the Cabinet.

"Minister in charge of a public department of Her Majesty's Government in the United Kingdom (if not within the other provisions of this Schedule)".

(2) The provisions of Schedule 1 to the Ministers of the Crown Act 1964 (provisions as to new Ministers and their Departments) shall apply to any Minister eligible for a salary under head 2 of Part II of Schedule 1 to the Ministerial and Other Salaries Act 1972 (as amended by section 1 of this Act).

1964 c. 98.
1972 c. 3.

(3) There are hereby transferred to the Minister of Overseas Development the functions which, under any enactment mentioned in Part I of Schedule 1 to this Act, are exercisable by the Secretary of State.

(4) Any functions of a Secretary of State, under the enactments mentioned in Part II of the said Schedule 1 may be exercised by the Minister of Overseas Development concurrently with the Secretary of State, and accordingly any reference to the Secretary of State in those enactments, and any such reference in any other enactment or instrument so far as it relates to those functions, shall be construed as a reference to the Secretary of State or the Minister of Overseas Development.

(5) Subsections (3) and (4) above are without prejudice to the power, under the Ministers of the Crown (Transfer of Functions) Act 1946, to transfer any other functions to the Minister of Overseas Development.

1946 c. 31.

4.—(1) This Act may be cited as the Ministers of the Crown Short title, etc. Act 1974.

(2) Schedule 2 to this Act, which contains provisions about the transfer of Ministers' functions and their property, shall have effect.

(3) The enactments and instruments specified in Schedule 3 to this Act shall be repealed to the extent specified in the third column of that Schedule.

SCHEDULES**SCHEDULE 1**

Section 3(3), (4).

FUNCTIONS OF MINISTER OF OVERSEAS DEVELOPMENT**PART I****ENACTMENTS CONFERRING FUNCTIONS TRANSFERRED**

- 12, 13 & 14 Geo. 6. c. 4. The Judges Pensions (India and Burma) Act 1948.
- 12, 13 & 14 Geo. 6. c. 50. The Colonial Loans Act 1949: section 1, subsection (2) and so much of subsection (3) as empowers the Secretary of State to grant approval as mentioned in paragraph (b) of that subsection.
- 6 & 7 Eliz. 2. c. 14. The Overseas Service Act 1958: except the provisions mentioned in Part II of this Schedule.
- 7 & 8 Eliz. 2. c. 23. The Overseas Resources Development Act 1959.
- 7 & 8 Eliz. 2. c. 71. The Colonial Development and Welfare Act 1959, except the following in so far as they confer functions on the Secretary of State, namely—
- (a) in section 2, so much of subsection (1) as relates to the approval of development programmes and so much of subsection (3) as relates to provision for the matters referred to in paragraphs (a) and (b) of that subsection;
- (b) section 5.
- 8 Eliz. 2. c. 6. The Commonwealth Scholarships Act 1959.
- 8 & 9 Eliz. 2. c. 40. The Commonwealth Teachers Act 1960.
- 9 Eliz. 2. c. 1. The Indus Basin Development Fund Act 1960.
- 1963 c. 40. The Commonwealth Development Act 1963: section 2(3).
- 1965 c. 38. The Overseas Development and Service Act 1965: section 2.
- 1966 c. 21. The Overseas Aid Act 1966.
- 1968 c. 57. The Overseas Aid Act 1968.
- 1969 c. 36. The Overseas Resources Development Act 1969.
- 1971 c. 56. The Pensions (Increase) Act 1971: sections 10, 11, 11A and 12.
- 1972 c. 40. The Overseas Investment and Export Guarantees Act 1972: section 3.
- 1973 c. 21. The Overseas Pensions Act 1973.

PART II**ENACTMENTS CONFERRING FUNCTIONS TO BE EXERCISED
CONCURRENTLY WITH THE SECRETARY OF STATE**

- 6 & 7 Eliz. 2. c. 14. The Overseas Service Act 1958: so much of section 1 as empowers the Secretary of State to make appointments, and the proviso to section 5(2).

SCHEDULE 2

Section 4(2).

TRANSFERS OF FUNCTIONS AND PROPERTY

1.—(1) In the Ministers of the Crown (Transfer of Functions) Act 1946 c. 31. 1946 after section 1 there shall be inserted the following section—

“ Changes in departments of office of Secretary of State, or in their functions. 1A.—(1) His Majesty may in connection with any change in the departments of the office of Secretary of State, or any change in the functions of a Secretary of State, by Order in Council make such incidental, consequential and supplemental provisions as may be necessary or expedient in connection with the change, including provisions—

- (a) for making a Secretary of State a corporation sole,
- (b) for the transfer of any property, rights or liabilities to or from a Secretary of State,
- (c) for any adaptations of enactments relating to a Secretary of State, or to the department of a Secretary of State,
- (d) for the substitution of one Secretary of State, or department of a Secretary of State, for another in any instrument, contract or legal proceedings made or commenced before the date when the Order takes effect.

(2) A certificate issued by a Minister of the Crown that any property vested in any other Minister immediately before an Order under this section takes effect has been transferred by virtue of the Order to the Minister issuing the certificate shall be conclusive evidence of the transfer.”.

(2) The said section 1A applies only to changes after the passing of this Act, and to the creation (in the year 1974) of the Departments of Energy, Industry, Trade, and Prices and Consumer Protection.

Transfer of property etc. by or to Secretary of State

2.—(1) This paragraph applies where any enactment (including an order under the Ministers of the Crown (Transfer of Functions) Act 1946) provides that a named Secretary of State and his successors shall be a corporation sole, and applies whether or not the office of corporation sole is for the time being vacant.

(2) Anything done by or in relation to any other Secretary of State for the named Secretary of State as a corporation sole shall have effect as if done by or in relation to the named Secretary of State.

(3) Without prejudice to the preceding provisions of this paragraph, any deed, contract or other instrument to be executed by or on behalf of the named Secretary of State as a corporation sole shall be valid if under the corporate seal of that Secretary of State authenticated by the signature of any other Secretary of State, or of a Secretary to any department of a Secretary of State, or of a person authorised by any Secretary of State to act in that behalf.

Section 5.

SCHEDULE 3

REPEALS

Chapter	Short Title	Extent of Repeal
1964 c. 15.	The Defence (Transfer of Functions) Act 1964.	In section 2(1) the words from "but so that anything" to the end of the subsection.
1974 c. 8.	The Statutory Corporations (Financial Provisions) Act 1974.	Section 5(1) except the words "in this Act 'the appropriate Minister' means the Secretary of State".

Orders in Council

S.I. 1965/319.	The Secretary of State for Wales and Minister of Land and Natural Resources Order 1965.	In Article 8(1) the words from "but so that anything" to the end of the said Article 8(1).
S.I. 1968/1699.	The Secretary of State for Social Services Order 1968.	In Article 4 the words from "but anything done by" to the end of the Article.
S.I. 1970/1537.	The Secretary of State for Trade and Industry Order 1970.	In Article 4(1) the words from "but so that anything" to the end of the said Article 4(1).
S.I. 1970/1681.	The Secretary of State for the Environment Order 1970.	In Article 3(2) the words from "but so that anything" to the end of the said Article 3(2).
S.I. 1974/692.	The Secretary of State (New Departments) Order 1974.	In Article 3(1) the words from "but so that anything" to the end of the said Article 3(1).